

CCRB INVESTIGATIVE RECOMMENDATION

Investigator: Daniel Giansante	Team: Squad #07	CCRB Case #: 201803335	☐ Force	☐ Discourt.	☐ U.S.
			☒ Abuse	☐ O.L.	☐ Injury
Incident Date(s) Wednesday, 03/28/2018 12:00 AM, NA, 03/___/2018 10:00 PM	Location of Incident: § 87(2)(b)	18 Mo. SOL 9/1/2019	Precinct: 60		
Date/Time CV Reported Wed, 05/02/2018 5:19 AM	CV Reported At: CCRB	How CV Reported: Phone	Date/Time Received at CCRB Wed, 05/02/2018 5:19 AM		

Complainant/Victim	Type	Home Address
§ 87(2)(b)	§ 87(2)(b)	§ 87(2)(b)

Witness(es)	Home Address
§ 87(2)(b)	§ 87(2)(b)

Subject Officer(s)	Shield	TaxID	Command
1. POM Joseph Villarreal	09081	961425	060 PCT
2. SGT James Gale	01362	943265	060 PCT
3. POM Brian Muldowney	20975	953149	060 PCT

Officer(s)	Allegation	Investigator Recommendation
A . SGT James Gale	Abuse: Sergeant James Gale stopped the vehicle in which § 87(2)(b) was an occupant.	A . Unsubstantiated
B . POM Joseph Villarreal	Abuse: Police Officer Joseph Villarreal stopped the vehicle in which § 87(2)(b) was an occupant.	B . Unsubstantiated
C . POM Brian Muldowney	Abuse: Police Officer Brian Muldowney stopped the vehicle in which § 87(2)(b) was an occupant.	C . Unsubstantiated
D . POM Brian Muldowney	Abuse: Police Officer Brian Muldowney frisked § 87(2)(b)	D . Substantiated
E . POM Joseph Villarreal	Abuse: Police Officer Joseph Villarreal searched the vehicle in which § 87(2)(b) was an occupant.	E . Substantiated
F . SGT James Gale	Abuse: Sergeant James Gale searched the vehicle in which § 87(2)(b) was an occupant.	F . Substantiated
§ 87(4-b) § 87(2)(g)	§ 87(2)(b)	

Case Summary

On May 2, 2018, § 87(2)(b) filed the following complaint while providing a phone statement regarding other CCRB complaints (BR01).

On an unknown date in March 2018, at approximately 10 p.m., § 87(2)(b) was driving to his residence at § 87(2)(b) in Brooklyn. His friend and neighbor, § 87(2)(b) was a passenger in the vehicle. Sergeant James Gale, Police Officer Joseph Villarreal, and Police Officer Brian Muldowney, all of the 60th Precinct, stopped § 87(2)(b)'s vehicle in the driveway at his apartment complex (**Allegations A-C: Abuse of Authority, unsubstantiated**). PO Muldowney frisked § 87(2)(b) (**Allegation D: Abuse of Authority, substantiated**). Sgt. Gale and PO Villarreal searched § 87(2)(b)'s vehicle (**Allegations E-F: Abuse of Authority, substantiated**).

§ 87(2)(g), § 87(4-b)

The investigation did not obtain video footage. The investigation was unable to determine the exact date of the incident. Although the civilians and officers all recalled the incident, none could provide the incident date. The investigation exhausted numerous avenues for determining the exact incident date, but did determine that it took place in March 2018. § 87(2)(g)

Findings and Recommendations

- **Allegation (A) Abuse of Authority: Sergeant James Gale stopped the vehicle in which § 87(2)(b) was an occupant.**
Allegation (B) Abuse of Authority: Police Officer Joseph Villarreal stopped the vehicle in which § 87(2)(b) was an occupant.
Allegation (C) Abuse of Authority: Police Officer Brian Muldowney stopped the vehicle in which § 87(2)(b) was an occupant.

In his in-person statement, § 87(2)(b) recounted that he was driving west on § 87(2)(b) toward his residence (BR02). He denied that he was ever exceeding the speed limit. As he prepared to turn right onto § 87(2)(b), he saw that another vehicle was tailgating his vehicle. He denied seeing any flashing police lights, hearing any sirens, or hearing any intercom instructions at that time. He signaled while turning right, and then signaled again when he turned left into the large, circular driveway adjacent to his apartment complex. The unmarked vehicle followed his vehicle and stopped behind his vehicle in the driveway. § 87(2)(b) maintained that it was not until he came to a stop in the driveway, and indeed not until after § 87(2)(b) exited his vehicle and jogged toward the building, that the officers activated the emergency lights on the unmarked vehicle. During the ensuing stop, Sgt. Gale told § 87(2)(b) that the officers stopped him because he had been speeding.

During his earlier phone statement, § 87(2)(b) recounted that an officer told him he had been stopped because his license plate lights were nonfunctional (BR01). During the in-person statement, § 87(2)(b) explained that he had been mistaken and had confused this incident with another instance in which officers stopped his vehicle and told him his plate lights were nonfunctional.

In both his phone statement and his in-person statement, § 87(2)(b) did not testify as to whether § 87(2)(b) was ever exceeding the speed limit (BR03; BR04). § 87(2)(b) similarly denied

that he and § 87(2)(b) were aware that an unmarked vehicle was following § 87(2)(b)'s vehicle. He did not see flashing emergency lights until after he had exited § 87(2)(b)'s vehicle in the driveway, indeed not until after he had entered the nearby apartment building.

PO Muldowney was driving the unmarked vehicle at the time of the incident (BR05). He recounted that the officers were stopped at a red light on a northbound street, at that street's intersection with § 87(2)(b). He thought the street might have been § 87(2)(b) § 87(2)(b) § 87(2)(b)'s vehicle suddenly appeared from the east on § 87(2)(b) and crossed in front of the officers' vehicle. PO Muldowney could immediately tell that the vehicle was exceeding the speed limit. Sgt. Gale was the front passenger in the unmarked vehicle, and he also recounted that he saw § 87(2)(b)'s vehicle exceeding the speed limit to the extent that he could immediately determine it was speeding simply from a visual observation (BR06). He could not recall where he was when he first § 87(2)(b)'s vehicle, and specifically could not recall if he was on § 87(2)(b) § 87(2)(b) as well, or if he saw § 87(2)(b)'s vehicle from a side street. PO Villarreal was in the backseat, and he similarly recounted seeing § 87(2)(b)'s vehicle speeding in the manner described by his partners (BR07).

PO Muldowney recounted that he pursued § 87(2)(b)'s vehicle west on § 87(2)(b), and that he activated his vehicle's emergency lights once § 87(2)(b)'s vehicle neared § 87(2)(b) § 87(2)(b). He could not recall if he activated the siren. PO Muldowney recounted that § 87(2)(b) failed to stop on § 87(2)(b). He described § 87(2)(b) as having driven slowly after he turned right onto § 87(2)(b) § 87(2)(b). Sgt. Gale similarly recounted that § 87(2)(b) failed to pull over promptly. Sgt. Gale recalled that the officers activated the emergency lights and the siren, and that they did so while still pursuing § 87(2)(b) on § 87(2)(b). He could not recall for how long § 87(2)(b) refused to stop on § 87(2)(b) before he turned onto § 87(2)(b) § 87(2)(b).

PO Villarreal recounted that the officers pursued § 87(2)(b) for one block on § 87(2)(b) before activating the RMP's emergency lights. He could not recall if they activated the siren. He did not claim that § 87(2)(b) failed to pull over; he recounted that § 87(2)(b) appeared to be pulling over because he quickly pulled into the driveway after turning right off of § 87(2)(b).

§ 87(2)(g)

§ 87(2)(g)

§ 87(2)(g)

Therefore it is recommended that
Allegations A-C be closed as unsubstantiated.

- **Allegation (D) Abuse of Authority: Police Officer Brian Muldowney frisked § 87(2)(b)**

PO Muldowney admitted that he frisked § 87(2)(b)

As previously recounted, § 87(2)(b) and § 87(2)(b) both claimed that they were never aware, in the time before they pulled into the driveway, that a police vehicle was following them, much less that a police vehicle was attempting to stop them. They also both admitted that § 87(2)(b) jogged away from the vehicle toward the building, but denied that he ran quickly.

§ 87(2)(g)

§ 87(2)(g)

§ 87(2)(g)

As previously noted, PO Muldowney and Sgt. Gale testified that they believed during the incident that § 87(2)(b) failed to pull over promptly. PO Muldowney became more suspicious of § 87(2)(b)'s vehicle at that point, because § 87(2)(b) absolutely should have been able to see the emergency lights in the nighttime darkness. PO Muldowney was led to "worry" and to "be a little more careful" at that point. Sgt. Gale's suspicion of § 87(2)(b)'s vehicle was also elevated when § 87(2)(b) failed to stop. He thought § 87(2)(b) was refusing to stop because the vehicle was stolen, or because "someone in the car ha[d] something," such as a weapon, drugs, or other contraband. PO Villarreal did not indicate that he felt during the incident that § 87(2)(b) was failing to stop, and thus did not claim that his suspicion of the vehicle was elevated.

All three officers claimed that § 87(2)(b) exited § 87(2)(b)'s vehicle just as the vehicle came to a stop, when all three officers were still seated in the RMP. PO Muldowney recounted that § 87(2)(b) turned to face the RMP in the moment he exited, and that he reached down and grabbed the middle of the front of his waistband. He initially recounted of § 87(2)(b) "[He] grabbed his waistband, which looked like the butt of a gun." He later confirmed that he could not actually see what § 87(2)(b) was grabbing, but that he could tell that § 87(2)(b) was "grabbing something that was solid right in that area." PO Muldowney thought § 87(2)(b) was grabbing a gun in his waistband, and he exclaimed to his partners, "Look at his waistband. Look at his waistband." § 87(2)(b) then ran at a "full sprint" towards the building, and he fled into an underpass which runs through the building.

Sgt. Gale's account was similar to that of PO Muldowney. He recounted that § 87(2)(b) grabbed at the front of his waistband with both hands, as if he was holding onto something. Sgt. Gale specified that he could not see § 87(2)(b) waistband itself, as there was an article of clothing atop it. § 87(2)(b) appeared to be grabbing at his waistband through the article of clothing. PO Villarreal recounted that, at the time § 87(2)(b)'s vehicle came to a stop, he looked down to get his flashlight. When he looked up, he saw § 87(2)(b) exit the vehicle holding his right hand against the side of his right hip. § 87(2)(b) then fled while continuing to hold his right hip, which led PO Villarreal to suspect that § 87(2)(b) was concealing something.

PO Muldowney recounted that Sgt. Gale and PO Villarreal ran after § 87(2)(b) while he waited with § 87(2)(b). PO Muldowney became even more nervous when § 87(2)(b) spontaneously put his hands up, as he has never seen a civilian do this in such an encounter. His anxiety was also heightened by the fact that, when he asked § 87(2)(b) to turn off his vehicle, § 87(2)(b) replied, "Are you sure?" When asked to explain why this made him nervous, PO Muldowney said, "I really don't know what to think, cause this is not a normal car stop by any means. I'm clearly not dealing with a normal individual, in my mind." Once Sgt. Gale and PO Villarreal returned, after having failed to catch § 87(2)(b), PO Muldowney directed § 87(2)(b) to exit the vehicle and brought him to the rear bumper. PO Muldowney added that he "was the one that was really dealing with" § 87(2)(b).

PO Muldowney knew that he frisked § 87(2)(b) but he could not recall when he did so. He could not recall which parts of § 87(2)(b)'s body he frisked. He guessed that he frisked § 87(2)(b)'s waistband and "probably around his ankles or something." He knew that he frisked § 87(2)(b) in the general areas on his body where a gun could have been located. PO Muldowney frisked § 87(2)(b) to make sure that he did not have any weapons on his person. He did not question § 87(2)(b).

as to whether he was armed. He suspected that § 87(2)(b) was armed because he had initially failed to pull over, and because § 87(2)(b) had fled from the vehicle while appearing to grab a weapon in his waistband. PO Muldowney denied that there were any other factors which led him to suspect that § 87(2)(b) had a weapon on his person. PO Muldowney specifically suspected § 87(2)(b) of having a firearm, but he also said that § 87(2)(b) could have possessed any type of weapon. PO Muldowney recounted his thinking at the time: “How am I to know if there are not more weapons or other things in that car that could possibly hurt me and my coworkers?”

Sgt. Gale could not recall if any officer frisked § 87(2)(b). PO Villarreal claimed that he pursued § 87(2)(b) alone, and that the incident was wrapping up by the time he returned to § 87(2)(b)'s vehicle. He denied seeing anyone frisk § 87(2)(b).

§ 87(2)(g)

Patrol Guide Procedure 212-11 states that an officer may only frisk someone if he or she reasonably suspects that the person is armed and dangerous (BR08).

In *People v. Haynes*, the court addressed a situation in which a man responded to the sight of officers by grabbing his waistband area (such that he appeared to be grabbing a heavy bulge) and then fleeing from the officers. The court found that this conduct did not constitute specific circumstances indicative of criminal activity, and did not give officers grounds even to lawfully pursue the individual. *People v. Haynes*, 115 A.D.3d 676 (2nd Dept. 2014) (BR09).

An individual may not be frisked solely because he or she is in the company of an individual the police reasonably suspect, as an inference of guilt by association is not a permissible basis to support reasonable suspicion. *People v. Dean*, 73 A.D.3d 801 (2nd Dept. 2010) (BR10).

§ 87(2)(g)

§ 87(2)(g)

Therefore it is recommended that **Allegation D** be closed as **substantiated**.

- **Allegation (E) Abuse of Authority: Police Officer Joseph Villarreal searched the vehicle in which § 87(2)(b) was an occupant.**

Allegation (F) Abuse of Authority: Sergeant James Gale searched the vehicle in which § 87(2)(b) was an occupant.

In his phone statement, § 87(2)(b) recounted that Sgt. Gale returned to his vehicle, directed him to exit, searched his pockets, and then directed him to stand at the rear bumper with PO Muldowney. Sgt. Gale and PO Villarreal then proceeded to search inside § 87(2)(b)'s vehicle. § 87(2)(b) was not able to watch the entire search, but he knew that at least one officer opened the glovebox and the center console, and he knew that the officers searched in the backseat.

In his in-person statement, § 87(2)(b) similarly recounted that Sgt. Gale returned from the pursuit, approached his window, and directed him to exit the vehicle. However, § 87(2)(b) now recounted that PO Villarreal entered the vehicle from the front passenger side at this time, while Sgt. Gale continued to question him at the driver's side. He saw PO Villarreal open the glovebox and center console. Sgt. Gale then directed § 87(2)(b) to stand at the rear with PO Muldowney, after which point Sgt. Gale entered the vehicle on the driver's side. It was not until the officers completed the vehicle search, which took about ten minutes, that Sgt. Gale approached § 87(2)(b) at the rear bumper and frisked him. In opposition to his prior phone statement, § 87(2)(b) now denied that Sgt. Gale actually searched his pockets.

In both his statements, § 87(2)(b) claimed that one of the officers who searched his vehicle was also the officer who frisked or searched him. In addition, in both statements § 87(2)(b) claimed that the two officers who pursued § 87(2)(b) were also the two officers who searched his vehicle. PO Muldowney admitted that he frisked § 87(2)(b) but PO Muldowney was not one of the officers who pursued § 87(2)(b) § 87(2)(g). § 87(2)(b) also was able to describe the hair of the two officers who searched his vehicle. PO Muldowney is completely bald. § 87(2)(b)

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In addition, PO Muldowney recounted that he was the officer who mainly interacted with § 87(2)(b) and that he stood with § 87(2)(b) at the rear bumper. PO Muldowney's recollection further supports the identification of Sgt. Gale and PO Villarreal as the subject officers, as one officer would have had to stand with § 87(2)(b) while the other two officers searched the vehicle.

Sgt. Gale confirmed that, once he stopped pursuing § 87(2)(b) he questioned § 87(2)(b) about § 87(2)(b) behavior. Sgt. Gale also confirmed that he suspected that § 87(2)(b) had a weapon on his person because § 87(2)(b) had not immediately pulled over and because of the manner in which § 87(2)(b) fled. Sgt. Gale even acknowledged that these factors may have led the officers to search § 87(2)(b)'s vehicle. However, Sgt. Gale initially said that he could not recall if any officer searched § 87(2)(b)'s vehicle, and he later said that he did not recall a vehicle search occurring during the incident.

As previously mentioned, PO Villarreal claimed that he pursued § 87(2)(b) on his own, and that § 87(2)(b) was already standing at his vehicle's trunk when he returned to the scene of the car stop. It appeared to PO Villarreal that his partners were "wrapping up" the stop. The doors of § 87(2)(b)

§ 87(2)(b)'s vehicle were not open at that time. PO Villarreal denied that he or his partners ever entered § 87(2)(b)'s vehicle. PO Villarreal believed that, after the officers left, his partners told him that there had been marijuana in § 87(2)(b)'s vehicle. He could not recall with certainty though, and he could recall no additional details beyond his impression that marijuana was somehow involved in the incident. Neither Sgt. Gale nor PO Muldowney mentioned marijuana at all in their accounts of this incident.

As opposed to his partners, PO Muldowney expressed the belief that § 87(2)(b)'s vehicle was searched. He could not recall, however, which officers searched the vehicle, nor could he recall how many officers did so. He could not even recall if he himself searched the vehicle. He could not recall any specific details of the search itself, such as which portions of the vehicle were searched or whether the glovebox and center console were opened. PO Muldowney could not recall when the vehicle search took place, except to say that it was “probably when [he] had § 87(2)(b) on the back bumper.”

§ 87(2)(g)

§ 87(2)(g)

There may be circumstances where, after a lawful vehicle stop, an officer obtains information that leads to the conclusion that a weapon located within the vehicle presents an actual and specific danger to the officer's safety sufficient to justify a further intrusion into that vehicle, notwithstanding the occupants' inability to gain immediate access to the weapon. *People v. Ortiz*, 25 Misc. 3d 1234(A) (BR11), citing *People v. Torres*, 74 N.Y.2d 224 (1989) (BR19) & *People v. Mundo*, 99 N.Y.2d 55 (2002) (BR12). In such a situation, an officer's belief that the vehicle contains a weapon must be reasonable in view of the totality of the circumstances. *People v. Griffin*, 42 Misc. 3d 1210(A) (2013) (BR13).

§ 87(2)(g)

§ 87(2)(g)

Therefore it is recommended that **Allegations E-F** be closed as **substantiated**.

- § 87(2)(b) [REDACTED]
- [REDACTED]

- Sergeant James Gale has been a member of the NYPD for 11 years and has been a subject in five CCRB complaints and eight allegations, none of which was substantiated. One of those cases (#201804009), comprising two allegations, is still under investigation.
- Police Officer Brian Muldowney has been a member of the NYPD for six years and has been a subject in three CCRB complaints and three allegations, none of which was substantiated. One of those cases (#201804009), comprising one allegation, is still under investigation.
- Police Officer Joseph Villarreal has been a member of the NYPD for two years and has been a subject in two CCRB complaints and two allegations, neither of which was substantiated. One of those cases (#201804008), comprising one allegation, is still under investigation.

Mediation, Civil and Criminal Histories

- § 87(2)(b) declined to mediate this complaint.
- On September 28, 2018, the undersigned requested a copy of any Notice of Claim filed regarding this incident with the NYC Comptroller's office. As of the date of this report, no response has been received. The response will be added to the case file upon receipt.
- [§ 87(2)(b)] [§§ 86(1)(3)&(4)] [§ 87(2)(c)] [REDACTED]

Squad No.: 8

Investigator:		Inv. Daniel Giansante	
	Signature	Print Title & Name	Date

Squad Leader:			
	Signature	Print Title & Name	Date

Reviewer:			
	Signature	Print Title & Name	Date